

TENTATIVE RULING

Case: **Gavin v. Inn at Park Winters et al.**
 Case No. CV2025-2565

Hearing Date: **August 26, 2026** **Department Thirteen** **9:00 a.m.**

The Court **SUSTAINS** defendants Inn at Park Winters, LLC, John Martin, and Rafael Galiano's (collectively, "defendants") evidentiary objection numbers 1, 3-9 to the declaration of Sharon Gavin. Defendants' remaining objections are **OVERRULED**.

Defendants' objections to the declaration of Brian McMahon are **OVERRULED**.

The Court **DENIES** plaintiff Sharon Gavin's ("plaintiff") application for right to attach order. (Code Civ. Proc., § 484.010 et seq.) Although the evidence is sufficient to establish the making of the loan of \$300,000, without the evidence that is kept out by objections, the remaining evidence is not sufficient to fully establish the calling of the loans due and the nonpayment thereof. Therefore, the Court finds that plaintiff fails to show a prima facie claim of all requisite elements for a cause of action based upon breach of contract. (Code Civ. Proc., §§ 484.030, 484.090, subd. (a)(2); *Santa Clara Waste Water Co. v. Allied World National Assurance Co.* (2017) 18 Cal.App.5th 881, 885; *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; *Lydig Construction, Inc. v. Martinez Steel Corp.* (2015) 234 Cal.App.4th 937, 944 [plaintiff has the burden of establishing probable validity by means of competent declarations and supporting records showing amount and entitlement].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sarkis v. Yolo County Public Agency Risk Management Insurance Authority et al.**

Case No. CV2024-2614

Hearing Date: **August 26, 2026** **Department Fourteen** **9:00 a.m.**

On the Court’s own motion, plaintiff Armond Sarkis’ (“plaintiff”) motion to strike defendants Yolo County Public Agency Risk Management Insurance Authority and Jill Renee Perez’s (collectively, “defendants”) memorandum of costs as premature, or, in the alternative, to tax costs and defendants’ motion for attorneys’ fees are **CONTINUED** to **September 9, 2026**, at 9:00 a.m. in Department Fourteen.